

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: August 20, 2025

TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
9:01 a.m.			
LINE 1	19CV360975	<i>Sophie Shen v. Wei Xia et al</i>	Order of Examination OFF CALENDAR due to lack of service.

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Calendar Line 1, 2 & 3

Case Name: *Marzieh Abdolyousefi et al vs Mojtaba Taiebat et al*

Case Number: 22CV398906

Defendant's Motions

Defendant seeks orders that the deposition of Plaintiff be resumed, that Plaintiff answer questions which she did not answer, and that Plaintiff produce certain documents sought in requests no. 23 and 24 of the deposition notice, namely (i) statements from Plaintiff's accounts at Bank of America for the period when the parties were in the relationship; and (ii) paystubs issued by Plaintiff's employers during the period when the parties were in the relationship. In addition, the Court is asked to impose a monetary sanction against Plaintiff and her counsel by ordering them to pay at least \$6,560 in fees and costs.

The Court is not persuaded by either party's arguments regarding procedural or evidentiary deficiencies. The factual and legal assertions in these unfortunate, ongoing discovery disputes between the parties are well known to each other and to the extent, *in this instance*, there may be irregularities, the Court sees no prejudice in reaching the merits.

As to the production of documents, the motion is GRANTED. To the Court, good cause for production is readily apparent. The full and complete Bank of America Records and the paystubs for the requested time period are directly related to Defendants allegations regarding the violation of the parties' financial agreements. Plaintiff is not entitled to make her own decisions regarding the relevance of information contained within the material or scope of the discovery by redacting information or omitting pages. Moreover, Plaintiff fails to justify any further objections to the disclosure, she has already produced piecemeal versions in response to the requests, and there is a protective order to alleviate any privacy issues. Any lingering concerns are thus outweighed by Defendant's right to discovery and the protections in place.

Accordingly, Plaintiff shall produce all remaining paystubs and all pages of all statements of Bank of America for the requested time period that are under her control in response to RFP 23 and 24. Also, a party to a civil action is required to produce, in response to a demand for production, documents "in the possession, custody, or control" of the party. (Code Civ. Proc. § 2031.010.) Documents that are not in a party's possession are nonetheless in the party's control if the party has a legal right to obtain the documents upon demand. Section 2031.010 is based on Rule 34 of the Federal Rules of Civil Procedure. (See 2 Witkin, Cal. Evid. 4th (2000) Discovery, § 118, p. 958). "Because of the similarity of California and federal discovery law, federal decisions have historically been considered persuasive absent contrary California decisions." (*Liberty Mutual Ins. Co. v. Superior Court* (1992) 10 Cal.App.4th 1282, 1288.) In the context of Rule 34, "control" is defined as the legal right to obtain documents upon demand. (See *In re Citric Acid Litigation* (9th Cir.1999) 191 F.3d 1090, 1107.)

Defendant's motion to compel further answers at deposition is GRANTED IN PART. Unless the objecting party demands the taking of the deposition be suspended to permit a motion for a protective order, "the deposition shall proceed subject to the objection." (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1014; CCP § 2025.460(b). As Defendant argues, if Plaintiff believed that the questions were asked to harass or annoy, her